IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH (COURT – II)

Item No. 301
CP(CAA)-58/ND/2023

IN THE MATTER OF:
Venkatesh Infra Project Pvt. Ltd. And ... Applicant/Petitioner
Venkatesh Steel Infra Pvt. Ltd.

Under Section: 230-232

Order delivered on 04.09.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)
SH. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

The present petition has been preferred for sanction of Scheme of Arrangement for Demerger Of 'Manufacturing Undertaking' of Venkatesh Infra Projects Private Limited (Demerged Company) and Venkatesh Steel Infra Private Limited (Resulting Company) Under Section 230-232 of Companies Act, 2013.

The petition is a second motion under Section 230-232 of the Companies Act, 2013. The Scheme of Amalgamation is espoused under Section 230 to 232 and other applicable provisions of the Companies Act, 2013 for merger/amalgamation of the aforementioned companies to achieve the objects mentioned in the scheme of amalgamation.

Heard. Issue notice to the Income-Tax Authorities, the Regional Director, Northern Region, Official Liquidator, Ministry of Corporate Affairs, the Registrar of Companies, Delhi and Haryana, New Delhi, the respective stock exchanges, and the Competition Commission of India established under sub-section (1) of section 7 of the Competition Act, 2002 (12 of 2003) and other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement. The representations, if any, to be made by the notice shall be made within a period of thirty days from the date of receipt of

the notice, failing which, it shall be presumed that they have no representations to make on the proposals.

Ld. Counsel for the Petitioner undertakes to serve notice upon the authorities/offices referred to hereinabove by all modes viz. registered post, speed post and E-mail. Affidavit of service be filed within one week. The petitioner shall also make all the documents referred to in Section 230(3) of the Companies Act, 2013 viz., a statement disclosing the details of the compromise, arrangement, a copy of the valuation report, if any, and their effect on creditors, key managerial personnel, promoters and non-promoter members, and the debenture-holders and the effect of the compromise or arrangement on any material interests of the directors of the company or the debenture trustees, if any, to the authorities referred to in Section 230(5) of the Companies Act, 2013 (ibid). The documents as also a copy of the notice to be served in terms of the present order upon the authorities referred to in Section 230(5) of the Companies Act shall also be placed on the website of the company, if any, and shall also be published in Business Standard, English (Delhi Edition) and Business Standard, Hindi (Delhi Edition) Newspapers in circulation in the localities/areas where the registered offices of the petitioners are located.

List on 27.10.2023

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

(Ashima)